

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF DELAWARE

QORVO, INC.,	)	
	)	
Plaintiff,	)	
	)	
v.	)	C.A. No. 21-1417 (JPM)
	)	
AKOUSTIS TECHNOLOGIES, INC. and	)	DEMAND FOR JURY TRIAL
AKOUSTIS, INC.,	)	
	)	
Defendants.	)	

**PLAINTIFF QORVO, INC.'S BENCH MEMORANDUM REGARDING
FINAL JURY INSTRUCTION REGARDING CIVIL CONSPIRACY**

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May 14, 2024

Qorvo respectfully submits this bench memorandum in opposition to Akoustis's request to remove from the final jury instructions the instruction related to civil conspiracy. Akoustis argues that "because no alleged co-conspirators were named as defendants in this action, submitting this claim to the jury would be confusing and prejudicial to Akoustis." (Stanford 5/13/24 e-mail).

Conspiracy may exist between parties or between a party and a non-party. All that is required is that one member of the conspiracy be a party to the action. *See Burton v. Dixon*, 259 N.C. 473, 476 (1963) ("If a conspiracy is formed and an overt act, causing damage, is committed by any one or more of the conspirators in furtherance of the conspiracy, all of the conspirators are liable. All may be joined as parties defendant in an action for damages caused by the wrongful act, but it is not necessary that all be joined; ***an action may be maintained against only one***. The liability of the conspirators is joint and several.") (emphasis added); *Stillwagon v. Innsbrook Golf & Marina, LLC*, Civil Action No. 2:11-cv-1338, 2013 U.S. Dist. LEXIS 38387, at *45 (W.D. Pa. Mar. 20, 2013) (same). "Because each member of a civil conspiracy is jointly and severally liable for damages caused by the conspiracy, it is not necessary to join all co-conspirators." *Jacobs Vehicle Sys., Inc. v. Yang*, No. 1:12cv00181, 2013 U.S. Dist. LEXIS 128689, at *33 (M.D.N.C. Sep. 10, 2013) (the plaintiff asserted civil conspiracy claim against only one defendant under North Carolina law, and the alleged co-conspirator was not named as a defendant).

Qorvo has provided evidence throughout trial that Akoustis engaged in a civil conspiracy with certain individuals to misappropriate Qorvo's trade secrets before they became employed by Akoustis, including but not limited to Mr. Rohan Houlden. *See, e.g.*, TX-22 (PTX-718). Pursuant to the above authorities, Qorvo is not required to name Mr. Houlden, or any of the other alleged co-conspirators, as defendants in this case.

Indeed, North Carolina even has a pattern jury instruction titled “AGENCY ISSUE – CIVIL CONSPIRACY (ONE DEFENDANT)”. *See* Exhibit A attached.

For these reasons, Akoustis’s request to strike the final jury instruction related to civil conspiracy should be denied.

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